

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR AUGUST 18, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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1. **MSP12-00290** **MATTER OF: THE LARIMORE FAMILY TRUST**
9:00 AM HEARING IN RE: SIXTH ACCOUNT AND REPORT OF TRUSTEE AND PETITION FOR SETTLEMENT; FOR
APPROVAL OF COMPENSATION TO TRUSTEE AND ATTORNEYS; CONTINUATION OF ON-ACCOUNT
COMPENSATION TO TRUSTEE; AND INCREASE IN MONTHLY ON-ACCOUNT COMPENSATION TO
TRUSTEE FILED BY DAVID HANSON ON 4-16-26

Need:

1. Further clarification in attorney fee declaration re paralegal per CRC §§ 7.703(e) & 7.754. Describe the qualifications of the paralegal (including education, certification, continuing education, and experience). Was the education self-taught, or at an institute of learning? How long ago? Any continuing education classes attended?

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2A. 9:00 AM	MSP15-02131 MATTER OF: THE GARAVENTA FAMILY MARITAL TRUST HEARING IN RE: LOUISA BINSWANGER'S NOTICE OF MOTION AND MOTION TO COMPEL BENEFICIARY MARIE ADLER'S RESPONSE TO REQUEST FOR PRODUCTION, SET 2 & MONETARY SANCTIONS FILED ON 7-8-26. Need appearances
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2B.

9:00 AM

MSP15-02131 MATTER OF: THE GARAVENTA FAMILY MARITAL TRUST

HEARING IN RE: LOUISA BINSWANGER'S NOTICE OF MOTION AND MOTION TO HAVE REQUESTS FOR
ADMISSION TO BENEFICIARY MARIE ADLER, SET 2 DEEMED ADMITTED & MONETARY SANCTIONS
FILED ON 7-8-26.

Need appearances

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2C.

9:00 AM

MSP15-02131 MATTER OF: THE GARAVENTA FAMILY MARITAL TRUST

HEARING IN RE: LOUISA BINSWANGER'S NOTICE OF MOTION AND MOTION TO COMPEL BENEFICIARY MARIE ADLER'S RESPONSE TO SPECIAL INTERROGATORIES, SET 2 & MONETARY SANCTIONS FILED BY LOUISA BINSWANGER ON 7-8-26.

Need appearances

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5A. **MSP21-01718** **ESTATE OF: GLENDA K GARCIA**
9:00 AM HEARING IN RE: STATUS OF FUNDS

Need:

1. Appearances
2. Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account Form MC-356 filed

Notes:

- a) Declaration of Attorney Martin Gonsalves filed 5/6/2026 re: proof of funds in blocked account with bank statement.
- b) Declaration of Annyalenna Fernandez as to funds filed 7/6/2026.

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5B.

9:00 AM

MSP21-01718 ESTATE OF: GLENDA K GARCIA

HEARING IN RE: ORDER TO SHOW CAUSE FOR JEHOVA GARCIA FOR FAILURE TO PROVIDE PROOF THAT FUNDS WERE PLACED IN A BLOCKED ACCOUNT REGARDING ANNYALENA FERNANDEZ AND ISMAEL FERNANDEZ

Need appearance by atty. Martin Gonsalves to show cause why he should not be sanctioned for failure to provide proof that funds were placed into a blocked account. The Court will consider sanctions of up to \$1,500.00, pursuant to CCP § 177.5 for failure to file evidence of depositing minors' funds into a blocked account.

Notes:

- a) Motion to be Relieved as Counsel filed by atty. Martin Gonsalves 6/16/2026, is set for hearing 10-13-2026.
- b) Response to Order to Show Cause filed by Attorney Martin Gonsalves 8/7/2026.

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7. **P22-00636** **MATTER OF: THE EILEEN M. BELLINGER TRUST DATED FEBRUARY 16, 2001**
9:00 AM HEARING IN RE: PETITION TO INSTRUCT TRUSTEE REGARDING DISTRIBUTION FILED BY REBECCA
GUYETTE ON 4-21-26.

Need

1. Appearances
2. Proof of mailing to Joseph John Bellinger individually not c/o someone or proof of written instructions to that effect. CRC § 7.51(d)

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8. **P23-00676** **MATTER OF: ASAKO YAMAMOTO SETTLEMENT TRUST**
9:00 AM HEARING IN RE: PETITION TO APPROVE 2ND & FINAL ACCOUNT & REPORT OF TRUSTEE FROM 3-1-24 THROUGH 10-31-24, TO APPROVE FORMER TRUSTEE'S FEES & ATTY FEES FILED BY HERB THOMAS ON 4-17-26.

Need:

1. Appearances
2. Receipt from successor trustee of assets transferred. Receipt must be filed prior to discharge of petitioner.

Note: Petition to Approve First Account and Report filed by Heather Fisher 8-7-2026, is set for hearing 12-10-2026.

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9A. P23-01667 MATTER OF: ANNIE FONG LIVING TRUST DATED MARCH 1, 2021, AMENDED AND RESTATED MAY 12, 2023

9:00 AM HEARING IN RE: NOTICE OF MOTION AND MOTION FOR LEAVE TO AMEND PETITION FILED BY MATTHEW LOW ON 4-17-26.

Need appearances

Note: Opposition to Motion for Leave to Amend filed by Denise Chambliss 8/6/2026.

9B. P23-01667 MATTER OF: ANNIE FONG LIVING TRUST DATED MARCH 1, 2021, AMENDED AND RESTATED MAY 12, 2023

9:00 AM HEARING IN RE: FIRST AMENDED PETITION FOR ESTABLISHMENT CLAIM TO PROPERTY, DOUBLE DAMAGES, ATTORNEY FEES FILED ON 09/27/23 BY MATTHEW LOW

Need:

1. Appearances to report status
2. Proposed Order

Notes:

- a. Response and Objection of Kimberly Low filed 06/27/2024.
- b. Request for Dismissal as to Respondent Ron Wong filed 01/23/25.

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11A.

9:00 AM

P24-00544

ESTATE OF: MARY MCMILLIAN

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION W/IAEA FILED ON 3/29/2024 BY
WARREN RED COOK

Need appearances to report status

Notes:

- a. Per 8-27-2024 minute order, Lana Avaloz appeared in objection and court ordered written objections to be filed and served by 12-13-2024 or objections will be deemed waived.
- b. Notice of Objection to Petition for Administration filed by Lana Avaloz 12-10-2024.
- c. Minutes of 6/30/26 state that petitioner intends to withdraw his petition.

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11B.

9:00 AM

P24-00544

ESTATE OF: MARY MCMILLIAN

HEARING IN RE: SECOND AMENDED PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 02/27/26 BY LANA AVALOZ

Petitioner still must do the following

1. Appear at the hearing
2. File a verified declaration to add self to the list at Petition item 8
3. File a verified declaration to add relationships to the list at Petition item 8
4. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
5. Have Notice of Petition to Administer Estate DE-121 published and file proof of publication with the Court. PrC § 8120
6. Submit Order for Probate Form DE-140

Notes:

1. Court will dispense with further formal service on Rosie Goins who appeared 6-30-2026.
2. Petitioner sent Notice of Hearing with form DE-111, Second Amended Petition for Probate and Amended Petition for Probate to Warren Red Cook 8/3/2026 and DE-111 Second Amended Petition to Gina Tripp, Rosie Goins, and Linda Cervantes separately 8/3/26.

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13.	P25-00583	MATTER OF: THE LAWRENCE B. KARP AND CAROL L. KARP REVOCABLE LIVING TRUST DATED JUNE 30, 2004, AMENDED AND RESTATED JULY 21, 2016
9:00 AM	HEARING IN RE: PETITION FOR REPORT OF TRUST; AN ACCOUNTING; FOR ORDER REQUIRING DISTRIBUTION OF TRUST ASSETS; DAMAGES; REMOVAL OF TRUSTEES FILED ON 04/02/25 BY JEFFREY A. KARP	
	Need appearances to report status, including mediation scheduled for June 30.	
	Note: Response and Objection filed by David A. Karp and Deborah R. Bailey 07/03/25.	

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14.

9:00 AM

P25-00825

ESTATE OF: NESTOR TAPIA

HEARING IN RE: FIRST & FINAL REPORT OF ADMINISTRATOR ON WAIVER OF ACCOUNT & PETITION FOR ITS APPROVAL, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ATTY FOR THE PERSONAL REPRESENTATIVE & FINAL DISTRIBUTION FILED BY HECTOR TAPIA ON 4-20-26.

Need:

1. Waiver of Accounting by Hector Tapia in his capacity as Administrator of Est. of Hermelinda Tapia
2. Spouse did not file an election to subject any inheritance to formal administration so therefore court lacks jurisdiction to order distribution to spouse or fees thereon. Need petition (may be *ex parte*) showing good cause for allowing late election, and order. Otherwise you will need amended petition eliminating spouse's portion and a recalculation of statutory fees. Proposed election must comply with LR 7.305. See PrC §§ 13500, 13501, 13502

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15. **P25-01791** **ESTATE OF: MARGARET MORKOWSKI**
9:00 AM HEARING IN RE: PROOF FUNDS ARE IN A BLOCKED ACCOUNT

Need appearances

Notes:

1. Order to Deposit Funds In Blocked Account filed 1-26-2026, authorized deposit of \$1.2 million.
2. Receipt and Acknowledgement filed 6/3/2026, reflects \$97,008.22.

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16. **P25-02113** **MATTER OF: THE DAVIDSON FAMILY 1990 TRUST**
9:00 AM HEARING IN RE: PETITION TO COMPEL ACCOUNTING AND AWARD OF ATTORNEYS FEES FILED ON
11/24/25 BY JACOB DAVIDSON

Need:

1. Appearances
2. Proposed Order

Note: Response and Objection by filed Sharon May 6/3/2026.

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17.

9:00 AM

P26-00021

ESTATE OF: KATHARINE CHUN

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED ON 01/06/26 BY KARYN DIANE CHUN

Petition Approved
Proposed Order Submitted
No Appearance Required

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| 18. | P26-00742 | MATTER OF: SHIRLEY RUTH WYSINGER REVOCABLE TRUST, DATED DECEMBER 26, 2019 |
| 9:00 AM | HEARING IN RE: PETITION TO CONFIRM TRUST OWNERSHIP OF REAL PROPERTY FILED ON 04/22/26 BY RODNEY A. ENIS | |
| Petitioner, Trustee, still must do the following: | | |
| <ol style="list-style-type: none">1. Appear at hearing2. File a verified declaration to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.1123. Have a Judicial Council Form Notice of Hearing mailed to all persons entitled to receive notice, and file Proof of Service with court, or file waivers of notice. PrC § 172034. Submit a revised, proposed Order that includes legal description of real property. A judgment, decree or order must be complete in itself. LR 7.110 | | |

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19.

9:00 AM

P26-00757

SWAIN VS SWAIN

HEARING IN RE: PETITION CONCERNING POWER OF ATTORNEY TO DETERMINE WHETHER POA IS IN EFFECT FILED ON 4/24/26 BY KAREN AND EDDIE SWAIN *INITIAL PETITION FILED

-- See also Line # 20 --

Petitioners, children of Principal, must do the following:

1. Appear at hearing
2. File a verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
3. File a verified declaration to include a copy of the power of attorney

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20. 9:00 AM	P26-00758 HEARING IN RE: PETITION TO DETERMINE VALIDITY OF TRUST DOCUMENTS FILED ON 4/24/26 BY KAREN & EDDIE SWAIN PROBATE TRUST PETITION FILED	MATTER OF: THE LUBERTA SWAIN TRUST DATED OCTOBER 4, 2022 -- See also Line # 19 --
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Petitioners, children, must do the following:

1. Appear at the hearing
2. File a verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112